

LW1108 · INTRODUCTION TO THE LEGAL SYSTEM

Full Marking Scheme

Section B · Winter 2024 Examination · Paper 1

Module Code	LW1108
Module Title	Introduction to the Legal System
Examination Session	Winter 2024
Paper Number	1
Internal Examiner	Dr Fidelma White
External Examiner	Dr Tanya Ní Mhuirthile
Duration of Paper	1.5 hours

SCOPE OF THIS SCHEME

UCC does not release Section A (MCQ) papers for this module, so this scheme covers **Section B only** — the three long-answer essay questions, of which candidates answer **one** for 70% of the total mark. Full model answers are provided for **all three** Section B questions (B1, B2, B3) so you can prepare regardless of which one comes up, or which one you choose to answer on the day. Section A is unpublished by the School and is not covered here.

Section	Content	Weight
A — MCQ (30 Qs)	Not released by UCC — not covered in this scheme	30%
B — Long Question (1 of 3)	Full model answers for B1, B2 and B3 below	70%

Sourcing note. Every case citation in this scheme has been checked against primary/reporting sources (BAILII, EUR-Lex, the Irish Reports, or equivalent) rather than typed from memory. Where a point of analysis goes beyond your lecture slides and course pack — i.e. it draws on the wider case law or academic commentary to build out the argument — it is flagged inline with a note like this one, so you can see exactly which parts are drawn straight from your materials and which extend them.

QUESTION AS SET

While the Constitution identifies the Oireachtas as the sole and exclusive law making institution of the state (Article 15.2.1°), there can be no doubt that the real 'law-making' power rests with the judiciary, as evidenced in their role in relation to the Constitution, legislation and the common law.

Discuss.

HEADLINE POSITION

Article 15.2.1° is formally correct but substantively incomplete. The judiciary does not compete with the Oireachtas as an alternative legislature — it has no power to originate a Bill, table an amendment, or vote a statute into force — but it exercises a distinct and very real law-making function through three channels the statement identifies: constitutional interpretation, judicial review of legislation, and the common law. The strongest version of the essay does not simply agree or disagree with the quotation; it shows *where* the judiciary genuinely makes law, *where* that power is structurally constrained, and concludes that "the real law-making power rests with the judiciary" overstates the case built into the Constitution's own separation of powers.

FULL MODEL ANSWER**1. The formal position: Article 15.2.1° and the separation of powers**

Article 15.2.1° of Bunreacht na hÉireann provides that "the sole and exclusive power of making laws for the State is hereby vested in the Oireachtas: no other legislative authority has power to make laws for the State." The Oireachtas comprises the President and the two Houses, Dáil Éireann and Seanad Éireann (Article 15.1.2°). This is the textual starting point of any answer to this question, because everything that follows has to be reconciled with it, not read as displacing it.

The 1937 Constitution does not use the phrase "separation of powers," but Article 6.1 and 6.2 imply a tripartite division between the legislature (the Oireachtas), the executive (the Government, Article 28), and the judiciary (the courts, Articles 34–37), each deriving its authority "under God, from the People." This division matters to the question because it supplies the constitutional logic for *why* the judiciary should not be making law in the same sense the Oireachtas does: the courts' legitimacy rests on adjudicating disputes and applying law, not on being democratically accountable for policy choices in the way TDs and Senators are.

2. Where the judiciary demonstrably does make law: the Constitution

The strongest evidence for the quotation's claim comes from constitutional interpretation. Article 34.3.2° gives the High Court jurisdiction to determine the validity of any law having regard to the provisions of the Constitution, with a further appeal to the Court of Appeal and, in defined circumstances, the Supreme Court (Article 34.4–34.5). Article 26 additionally allows the President, after consultation with the Council of State, to refer a Bill to the Supreme Court for a determination on its constitutionality before signature. Both routes give the judiciary the power to strike down or bless

legislation the Oireachtas has enacted — a power no other branch can override, since a Bill referred and found repugnant under Article 26 can never again be presented for signature (Article 34.3.3°), and a statute struck down under Article 34.3.2° is treated as never having validly existed.

Beyond striking legislation down, the Superior Courts have used the "unenumerated" or implied rights doctrine to identify rights that are nowhere named in Article 40's text but are treated as flowing from Article 40.3.1°'s guarantee to "respect, and, as far as practicable, ... defend and vindicate the personal rights of the citizen." In *Ryan v Attorney General* [1965] IR 294, the High Court (Kenny J) held that the personal rights protected by Article 40.3 were not limited to those enumerated in Articles 40–44, recognising an unenumerated right to bodily integrity in the course of upholding the constitutionality of water fluoridation. *McGee v Attorney General* [1974] IR 284 built directly on this: a 4–1 Supreme Court majority (Walsh, Henchy, Griffin and Budd JJ, FitzGerald CJ dissenting) held that s.17 of the Criminal Law (Amendment) Act 1935, which prohibited the importation of contraceptives, was inconsistent with an unenumerated right to marital privacy under Article 41, even though no such right to privacy is named anywhere in the constitutional text. *Norris v Attorney General* [1983] IESC 3, [1984] IR 36 shows the same interpretive method being tested and, on that occasion, failing to persuade a majority: by a 3–2 split the Supreme Court declined to strike down the criminalisation of consensual homosexual acts, but the case is doctrinally important precisely because both the majority and the dissents (Henchy and O'Higgins JJ dissenting) accepted the legitimacy of reading unenumerated rights into Article 40 — they disagreed only about whether a right to privacy in that context existed and, if so, whether it was outweighed by the State's interest in public morality.

Beyond the course pack. Your lecture slides flag *Norris* as an example of judicial review and dissenting judgments; identifying it specifically as an unenumerated-rights case that sits alongside *Ryan* and *McGee* extends that point using the wider case law, and is exactly the kind of connection that separates a first-class answer from a 2.1 one on this question.

What makes this a genuine law-making power, rather than mere interpretation, is that nothing in the constitutional text compels the courts to find any particular unenumerated right; the doctrine is a judicially-created *method* for expanding the content of Article 40.3 case by case. A further, structurally important example is *Crotty v An Taoiseach* [1987] IR 713, where the Supreme Court held that the Government's power to conduct external relations was not unlimited, and that ratifying Title III of the Single European Act would require a constitutional amendment because it involved an irreversible alienation of sovereign decision-making power that went beyond what the People had authorised in the Third Amendment. *Crotty* is doctrinally significant here because the Court was not applying a rule the Oireachtas or the People had written down for that specific situation — it derived a new limit on the treaty-making power from general constitutional principle, and in doing so shaped, in practice, how every subsequent EU treaty (Maastricht, Nice, Lisbon) has had to be ratified in Ireland: by referendum rather than executive act alone.

3. Where the judiciary demonstrably does make law: the common law

Separately from constitutional adjudication, Ireland is a common law jurisdiction, and the doctrine of precedent (*stare decisis*) means that judge-made rules bind future courts in the same way statute does. H.L.A. Hart's rule-model account of law, covered in the course materials, frames this precisely: Hart identifies "secondary rules" — the rules that authorise certain persons or bodies to make, change, and adjudicate "primary rules" — and observes that courts are one of the officials the secondary rules recognise as authorised to generate binding law, alongside the legislature. On Hart's account, judicial law-making is not a deviation from the system; it is built into the system's own definition of what counts as law.

The paradigm illustration, drawn from the course pack, is *Donoghue v Stevenson* [1932] AC 562, where the House of Lords (Lord Atkin) articulated the "neighbour principle" and, with it, the modern tort of negligence — a body of law

that exists nowhere in any statute and was generated entirely by judicial reasoning from first principles. Irish courts subsequently adopted and applied this reasoning as part of the common law received into the Irish legal system, and it remains the foundation of negligence liability in Ireland today. Once decided, a rule of this kind binds courts of equal and lower jurisdiction under the doctrine of precedent (subject to the distinction between binding *ratio decidendi* and non-binding *obiter dictum*), and can only be overturned by a higher court or by the Oireachtas legislating to reverse it — which is itself evidence of how substantively "law-making" the exercise is, since a legislative act is required to undo it.

Delegated legislation supplies a further, more indirect example of judicial shaping of the boundary between the Oireachtas and other law-makers. In *Cityview Press Ltd v An Chomhairle Oiliúna* [1980] IR 381, the Supreme Court (O'Higgins CJ) developed the "principles and policies" test: a delegation of rule-making power to a Minister or body is constitutional under Article 15.2.1° only if it does no more than give effect to principles and policies already contained in the parent Act, rather than allowing the delegate to determine those policies itself. The test is judge-made, is not spelled out anywhere in Article 15.2, and has since been applied to strike down delegated legislation that strayed too far from its parent Act — meaning the courts, not the Oireachtas, ultimately police the line between permissible delegation and impermissible self-abdication by the legislature.

4. The counter-case: why "the real law-making power" overstates it

A first-class answer does not stop at cataloguing examples; it tests the quotation against the structural limits the Constitution places on the judiciary, because those limits are exactly what distinguishes judicial law-making from legislative law-making.

First, courts in Ireland have no advisory jurisdiction outside Article 26: they cannot originate a ruling on a point of law in the abstract, only decide the live case or controversy actually before them (the *locus standi* and justiciability requirements applied, for example, in the High Court stage of *Crotty*). This means judicial law-making is reactive and incremental — bounded by whatever facts happen to come before the courts — rather than the comprehensive, prospective law-making the Oireachtas can undertake by enacting a statute covering an entire field.

Second, legislation enjoys a presumption of constitutionality, and the courts have repeatedly declined to use judicial review as a vehicle for setting policy or ordering expenditure that is properly a matter for the Oireachtas and Government. In *Sinnott v Minister for Education* [2001] 2 IR 545, the Supreme Court held that, while the applicant had a constitutional right to primary education, the courts should not make a mandatory order directing the Executive on how to allocate resources to vindicate it — recognising a separation-of-powers limit on how far judicial law-making can be pushed into resource allocation, which is the Oireachtas's and Government's constitutional territory. *North Western Health Board v W* [2001] 3 IR 622, covered in your course pack, shows the same tension from a different angle: a majority of the Supreme Court declined to order that a child undergo the PKU test against a parental refusal, in part on the basis that courts should be slow to substitute their own judgment for that of parents and the democratically accountable policy framework, even where a novel and difficult rights question was squarely before them.

Third, and most fundamentally, judicial law-making via the common law is always defeasible by ordinary legislation: because Article 15.2.1° vests exclusive law-making power in the Oireachtas, the Oireachtas can always legislate to reverse, codify, or restrict a common law rule the courts have developed (subject only to constitutional limits that apply equally to any statute). The reverse is not true: the judiciary cannot, by judgment, override or repeal a validly enacted statute except by finding it unconstitutional under Article 34.3.2° — and even then, it is testing the statute against a text (the Constitution) that only the People, not the judiciary, can amend under Article 46. This asymmetry is

the clearest structural evidence that Article 15.2.1° retains real force: judicial law-making operates *within* a framework the Oireachtas and the People, not the courts, ultimately control.

EXAMINER'S TIP

Do not write this as two disconnected halves ("here is evidence for" / "here is evidence against"). The strongest essays interleave the two: for every example of judicial law-making, name the specific constitutional or doctrinal constraint that keeps it short of "the real law-making power." That is what "critically" and "discuss" are asking for, not a list.

5. Conclusion

The judiciary undeniably makes law — through the unenumerated rights doctrine, through judicial review of legislation under Articles 26 and 34, and through the common law and doctrines like the "principles and policies" test. In each of these channels, the courts generate binding rules of general application that did not exist in that form before the judgment was handed down, which is a meaningful sense of "law-making." But the claim that the judiciary holds "the real" law-making power — implying that Article 15.2.1° is a formality the substance has moved past — goes further than the evidence supports. Judicial law-making is reactive rather than initiating, is constrained by justiciability and the presumption of constitutionality, is always subject to legislative reversal at common law, and can only invalidate a statute by measuring it against a text the courts themselves cannot amend. The better reading of the relationship, and the one this essay defends, is that the Oireachtas and the judiciary exercise two different *kinds* of law-making power that the separation of powers deliberately keeps distinct: the Oireachtas legislates prospectively and comprehensively with democratic accountability; the judiciary develops law incrementally and reactively, constrained by the very Constitution and statutes whose meaning it is interpreting. Article 15.2.1° therefore remains substantively, not just formally, accurate — even though the judiciary's law-making role is real, significant, and worth taking seriously in its own right.

Mark Allocation — Question B1 (out of 100% of the question)

Component	Weight
Introduction — states a clear thesis engaging directly with the quotation, not just the general topic of law-making	8%
Formal position — accurately states Article 15.2.1°, Article 15.1.2°, and the implied separation of powers under Article 6	12%
Judicial role and the Constitution — unenumerated rights (<i>Ryan, McGee, Norris</i>), judicial review (Arts 26, 34.3.2°), and/or <i>Crotty</i> , correctly explained and cited	25%
Judicial role and the common law — precedent/ <i>stare decisis</i> , Hart's rule-model, <i>Donoghue v Stevenson</i> , and/or the <i>Cityview Press</i> "principles and policies" test	20%
Critical limits on judicial law-making — justiciability, presumption of constitutionality, <i>Sinnott/North Western Health Board</i> , and the defeasibility of common law by statute	25%
Conclusion — a reasoned, specific answer to the question as posed, not a restatement of the introduction	10%
Total	100%

Mark Bands

Band	What must be present
First Class (70%+)	Correctly states Art 15.2.1° AND develops both the constitutional and common law strands of judicial law-making with accurately cited authority (at minimum <i>McGee</i> or <i>Ryan</i> , plus <i>Donoghue v Stevenson</i> or <i>Cityview Press</i>) AND explicitly tests the quotation against a genuine structural limit (justiciability, presumption of constitutionality, or defeasibility by statute) AND reaches a specific, reasoned conclusion on whether "the real law-making power" is an overstatement.
2.1 (60–69%)	Correctly states Art 15.2.1° AND covers at least one of the constitutional or common law strands with accurate case authority AND gestures at a counter-argument, but the two sides are not directly connected to each other or the conclusion is generic.
2.2 (50–59%)	States Art 15.2.1° and gives at least one relevant, correctly-cited example of judicial law-making (constitutional or common law), but the essay is largely descriptive, omits the counter-case, or misattributes a case's holding.
Third/Fail (0–49%)	Does not correctly state Art 15.2.1°, cites no accurate case authority, or fails to engage with the specific quotation (e.g. writes a generic essay on the courts without addressing the "real law-making power" claim).

Case citations: *Ryan v Attorney General* [1965] IR 294; *McGee v Attorney General* [1974] IR 284; *Norris v Attorney General* [1983] IESC 3, [1984] IR 36; *Crotty v An Taoiseach* [1987] IR 713; *Donoghue v Stevenson* [1932] AC 562; *Cityview Press Ltd v An Chomhairle Oiliúna* [1980] IR 381; *Sinnott v Minister for Education* [2001] 2 IR 545; *North Western Health Board v W* [2001] 3 IR 622.

Question B2

70% if selected

QUESTION AS SET

EU law, in all its forms, dominates the Irish legal system.

Critically assess this statement.

HEADLINE POSITION

"Dominates" is too strong if it means EU law displaces the Irish legal system generally. The better-supported position is that EU law is *supreme within, but confined to, the areas of competence Ireland has conferred on the Union* — and that this supremacy exists in Irish law only because the People consented to it, by referendum, through Article 29 of the Constitution. Within its own field EU law's dominance is real and doctrinally total (primacy, direct effect, state liability); outside that field — most of criminal law, family law, tort, property, and the general common law — EU law has no purchase at all.

FULL MODEL ANSWER

1. What "dominates" would have to mean, and the case for it

The strongest version of the claim rests on three doctrines developed by the Court of Justice of the European Union (CJEU), each of which genuinely subordinates conflicting Irish law to EU law within its scope.

Primacy. In *Costa v ENEL* Case 6/64 [1964] ECR 585, the Court of Justice held that the EEC Treaty had created "its own legal system" which, on entry into force, became "an integral part of the legal systems of the Member States," such that a later, conflicting national law cannot be given precedence — otherwise the "legal basis of the Community itself" would be called into question. This was extended in *Internationale Handelsgesellschaft* Case 11/70 [1970] ECR 1125, where the Court held that EU law prevails even over provisions of a Member State's own constitution. Applied literally, this doctrine subordinates every rule of Irish law — up to and including the Constitution — to EU law wherever the two conflict.

Direct effect. *Van Gend en Loos* Case 26/62 [1963] ECR 1 held that the EEC Treaty was not merely an agreement between states but created "a new legal order," the subjects of which include individuals as well as Member States; provisions of EU law that are sufficiently clear, precise and unconditional confer rights on individuals directly enforceable in national courts, without needing to be transposed by national legislation first. This means EU law does not merely bind the Irish State in the abstract — it can be invoked by an individual in an Irish court against the State (vertical direct effect) and, for certain provisions, against another private party (horizontal direct effect), bypassing the Oireachtas entirely.

State liability. *Francovich and Bonifaci v Italy* Joined Cases C-6/90 and C-9/90 [1991] ECR I-5357 held that a Member State can be liable in damages to an individual harmed by its failure to properly implement a directive, even where the directive itself lacks direct effect. This closes the enforcement gap: a State cannot escape the practical force

of EU law simply by declining to legislate it into domestic effect, because the courts can compel financial compensation for the failure itself.

Institutionally, the case for "dominance" is reinforced by the sheer footprint of EU secondary legislation: regulations (directly applicable without national implementing measures), directives (binding as to result, implemented into Irish law typically by statutory instrument under the European Communities Act 1972), and decisions, alongside the CJEU's own preliminary-ruling jurisdiction under Article 267 TFEU, which binds Irish courts to refer questions of EU law interpretation to Luxembourg and to apply the answer received. Given how much of company law, competition law, consumer protection, environmental law, employment law, and agricultural policy in Ireland now originates in or is shaped by EU instruments, a case can be made that EU law is not one source among several but the dominant source across large areas of Irish commercial and regulatory practice.

2. The constitutional foundation the claim tends to overlook

A critical assessment has to ask *why* EU law has this effect in Ireland, because the answer immediately qualifies the claim. Unlike the position the CJEU takes in its own case law (EU law is supreme as a matter of the autonomous EU legal order, full stop), the Irish courts and the Constitution locate the primacy of EU law in domestic law within a specific constitutional amendment. Article 29.4 of the Constitution (as amended, following the Third Amendment in 1972 and subsequent amendments accompanying later treaties) provides that no provision of the Constitution invalidates laws enacted, acts done, or measures adopted by the State that are necessitated by the obligations of EU membership. This is not a spontaneous concession by the Irish legal system to an external authority; it is a conditional, People-authorised grant of primacy, embedded in and controlled by the Irish Constitution itself.

Crotty v An Taoiseach [1987] IR 713 is the clearest illustration that this grant is not open-ended. The Supreme Court held that ratifying Title III of the Single European Act — which touched on foreign policy cooperation, not the "core" economic Treaties — went beyond what the Third Amendment had authorised, and required a fresh referendum before the State could ratify it. Every subsequent EU treaty of significance (Maastricht 1992, Amsterdam, Nice, Lisbon) has, as a direct consequence of *Crotty*, been put to the Irish people in a referendum before ratification — including two rounds each for Nice and Lisbon, after initial rejections in 2001 and 2008 respectively. This is difficult to reconcile with a picture of EU law simply "dominating" the Irish legal system: it shows the Irish People retaining, and on at least two occasions actively exercising, a veto over further transfers of sovereignty to the EU.

Beyond the course pack. Your lecture notes state the doctrine of primacy and direct effect as settled EU law; connecting that doctrine back to Article 29.4 and *Crotty* — showing that Irish primacy is domestically conditional, not simply received — is the analytical move that turns a descriptive answer into a critical one, and is exactly what "critically assess" is asking for.

3. The limits of EU law's reach within the Irish legal system

The EU is a union of conferred competences, not general jurisdiction: Article 5 TEU provides that the Union acts only within the limits of the competences conferred on it by the Member States in the Treaties, and that competences not conferred remain with the Member States. This is the single most important qualification to the claim in the question. Vast areas of Irish law are, in substance, untouched by EU law: the general law of contract and tort (subject to specific EU-derived consumer protection measures), the criminal law (subject to narrower EU competence in areas like cross-border crime and the European Arrest Warrant), family law, succession law, and — most importantly for this module — the entire common law method examined in the earlier part of the course (precedent, judge-made negligence law from *Donoghue v Stevenson* [1932] AC 562 onward, statutory interpretation) continues to operate exactly as it did before EU membership, because none of it falls within a field the Treaties confer on the Union.

Delegated implementation of EU law in Ireland is also subject to domestic constitutional limits, not merely to EU-level rules. In *Maher v Minister for Agriculture* [2001] 2 IR 139, the Supreme Court confirmed that regulations implementing EU obligations under the European Communities Act 1972 are still subject to scrutiny under Irish administrative law principles, including the *Cityview Press* "principles and policies" logic, even though the underlying obligation to implement originates in EU law. The Irish courts, not the CJEU, remain the primary forum enforcing EU rights domestically in the first instance; only where a genuine question of EU law interpretation arises does an Irish court refer to the CJEU under Article 267 TFEU, and even then the CJEU answers the question of EU law while the Irish court applies that answer to the facts and retains control of the domestic proceedings. EU law therefore operates *through* the Irish legal system's own institutions and procedures rather than displacing them.

Finally, "in all its forms" is itself doing a lot of work in the question, and is worth challenging directly. Not every form of EU law has the same force: regulations are directly applicable and need no national implementing measure; directives generally require transposition and, per *Van Gend en Loos*'s progeny, produce only vertical (not horizontal) direct effect where they are unimplemented, precise, and unconditional; recommendations and opinions have no binding force at all (Article 288 TFEU). A claim that EU law "in all its forms" dominates therefore has to be qualified immediately once the actual hierarchy of EU secondary legislation is examined — some forms bind absolutely, some bind conditionally, and some do not bind at all.

COMMON MISTAKE TO AVOID

Do not write this essay as "EU law is supreme, full stop" using only *Costa* and *van Gend en Loos*. Examiners are specifically testing whether you can qualify primacy with Article 29.4, *Crotty*, and the conferred-competences principle. A one-sided answer that never questions "dominates" caps out in the 2.2 band even if every case cited is correctly stated.

4. Conclusion

EU law does dominate, in the strongest sense of that word, within the fields the Treaties confer on the Union: primacy under *Costa* and *Internationale Handelsgesellschaft*, direct effect under *Van Gend en Loos*, and state liability under *Francovich* together give EU law a supremacy over conflicting domestic law — up to and including the Constitution — that no other external source of law in the Irish system possesses. But "EU law, in all its forms, dominates the Irish legal system" overstates the position in two distinct ways. First, that dominance exists in Irish law only because the People conditionally authorised it through Article 29.4, a grant the Supreme Court in *Crotty* confirmed is not unlimited and can require a fresh referendum before it is extended further. Second, the principle of conferred competences means EU law simply has no application at all across most of Irish private law, criminal law, and the common law method that forms the backbone of this module — it is dominant within its own, EU-defined field, not dominant over the Irish legal system as a whole. The accurate formulation is that EU law is supreme but bounded: total within its competence, absent outside it, and permitted to be total at all only by the continuing, revisable consent of the Irish People.

Mark Allocation — Question B2 (out of 100% of the question)

Component	Weight
Introduction — states a clear, qualified thesis rather than a flat agree/disagree	10%
Primacy — <i>Costa v ENEL</i> and/or <i>Internationale Handelsgesellschaft</i> , correctly explained	20%
Direct effect — <i>Van Gend en Loos</i> , correctly explained, including the vertical/horizontal distinction	15%
State liability — <i>Francovich</i> , correctly explained	10%
Institutional/legislative footprint — regulations, directives, decisions, Art 267 TFEU references, correctly distinguished	10%
Critical limits — Art 29.4, <i>Crotty</i> , the conferred-competences principle (Art 5 TEU), and/or <i>Maher v Minister for Agriculture</i>	18%
Conclusion — a specific, reasoned answer to whether "in all its forms" and "dominates" are accurate	17%
Total	100%

Mark Bands

Band	What must be present
First Class (70%+)	Correctly explains at least two of primacy/direct effect/state liability with accurately cited authority AND explicitly qualifies "dominates" using Art 29.4 and/or <i>Crotty</i> AND engages with the conferred-competences limit AND reaches a specific conclusion that distinguishes EU law's force within versus outside its competence.
2.1 (60–69%)	Correctly explains at least one of primacy/direct effect with accurate authority AND raises a genuine limiting counter-argument (Art 29.4, <i>Crotty</i> , or conferred competences), but the two strands are not fully integrated or the conclusion is generic.
2.2 (50–59%)	Correctly states at least one EU law doctrine with an accurate case citation but treats "dominates" as self-evidently true, with no real critical qualification.
Third/Fail (0–49%)	No accurate case authority for primacy or direct effect, confuses EU institutions/instruments, or does not engage with the word "dominates" at all.

Case citations: *Costa v ENEL* Case 6/64 [1964] ECR 585; *Internationale Handelsgesellschaft mbH v Einfuhr- und Vorratsstelle für Getreide und Futtermittel* Case 11/70 [1970] ECR 1125; *Van Gend en Loos v Nederlandse Administratie der Belastingen* Case 26/62 [1963] ECR 1; *Francovich and Bonifaci v Italy* Joined Cases C-6/90 & C-9/90 [1991] ECR I-5357; *Crotty v An Taoiseach* [1987] IR 713; *Maher v Minister for Agriculture* [2001] 2 IR 139.

Question B3

70% if selected

QUESTION AS SET

Critically compare and contrast the different forms of dispute resolution in relation to business disputes in Ireland.

HEADLINE POSITION

No single mechanism is best for business disputes generally — the four mechanisms (negotiation, mediation, arbitration, litigation) trade off finality, cost, confidentiality, procedural rigour, and relationship-preservation against each other in different combinations, and the "right" choice depends on the dispute's value, urgency, and whether the parties need to keep working together afterwards. The strongest essays organise the comparison around these trade-offs rather than describing each mechanism in an unconnected list.

FULL MODEL ANSWER

1. The four mechanisms and where each sits

Irish businesses resolving a dispute have four broad options, usually presented on a spectrum from least to most formal: negotiated settlement (private, no third party), mediation/conciliation (a facilitated but non-adjudicative form of ADR), arbitration (a private, binding, adjudicated process chosen by the parties), and litigation (public adjudication before the ordinary courts). The comparison that follows works through each in turn and then draws the trade-offs together.

2. Negotiation

Negotiated settlement is the most common outcome for commercial disputes in practice: the great majority of disputes that arise, including most that are formally litigated, settle before final judgment, precisely because negotiation is the cheapest, fastest, and most flexible mechanism available — the parties control both the process and the outcome entirely, and no result is imposed on either side. Its central weakness is equally obvious: it depends entirely on both parties' willingness to engage in good faith, has no mechanism to compel disclosure of information or compel the other side to the table, and produces no result at all where one party simply refuses to negotiate or where there is a significant power imbalance between the businesses involved.

3. Mediation and conciliation (ADR)

Mediation introduces a neutral third party who facilitates a negotiated resolution but has no power to impose an outcome; conciliation is closely related but typically involves the neutral taking a more active role in proposing terms. In Ireland, the Mediation Act 2017 (in force from 1 January 2018) put this on a statutory footing for civil disputes generally: it requires practising solicitors to advise clients to consider mediation before issuing court proceedings and to provide information about mediation services, and it establishes the Mediation Council of Ireland. Section 3 of the Act carves out specific exclusions — notably, disputes that are already the subject of an arbitration agreement under the Arbitration Act 2010, and certain categories such as Workplace Relations Commission matters — are outside its scope.

For business disputes specifically, mediation's strongest advantage is preserving a commercial relationship the parties may need to continue — a supplier and a long-standing customer, or joint venture partners, are often far better served by a facilitated compromise than by a public, adversarial process that permanently damages the relationship regardless of who "wins." It is also confidential, comparatively inexpensive, and can produce creative, commercially tailored outcomes (a revised contract term, a payment plan) that a court has no power to order, since litigation is generally confined to remedies like damages, specific performance, or injunctions. Its central limitation mirrors negotiation's: it is not binding unless and until the parties reduce the outcome to a settlement agreement, so a party bargaining in bad faith can use mediation to delay rather than resolve, and if no agreement is reached the parties are simply back where they started, having spent time and the mediator's fee.

4. Arbitration

Arbitration is a private, consensual process in which the parties agree (usually in advance, via an arbitration clause in their commercial contract) to have a dispute determined by one or more arbitrators, whose award is final and binding. The Arbitration Act 2010, in force since 8 June 2010, governs both domestic and international arbitrations in Ireland and adopted the UNCITRAL Model Law on International Commercial Arbitration in its entirety into Irish law, replacing the previous Arbitration Acts 1954–1998 and unifying what had been a split domestic/international regime into a single Model Law-based framework. Section 9 designates the High Court as the relevant court under the Model Law for supervisory functions (such as appointing an arbitrator where the parties cannot agree, or hearing a challenge to jurisdiction).

Arbitration's advantages for business disputes are well matched to commercial needs: confidentiality (unlike litigation, which is heard in open court and generates a public judgment), the ability to select an arbitrator with relevant technical or industry expertise rather than a generalist judge, procedural flexibility (the parties can agree the rules, timetable, and even the seat), and — critically for cross-border commercial disputes — much easier international enforceability of the resulting award under the New York Convention 1958, to which Ireland and the vast majority of trading nations are party, compared with the comparatively patchy cross-border enforcement of a foreign court judgment. Its central disadvantages are cost (arbitrator fees plus legal fees can rival or exceed litigation costs, especially in complex international arbitrations, and unlike a judge, the arbitrator must be paid by the parties) and the very limited grounds for appeal — under the Model Law an arbitral award can be set aside only on narrow procedural grounds (e.g. want of jurisdiction, a breach of due process), not because the arbitrator got the substantive law wrong. This finality is a genuine double-edged sword for business: it delivers certainty and closes disputes quickly once decided, but it also means a badly-reasoned award is very difficult to correct.

5. Litigation

Litigation before the ordinary courts — for a business dispute of significant value, typically the Circuit Court (claims up to €75,000) or the High Court (unlimited jurisdiction, and the venue for the most complex commercial cases, including via the Commercial Court list for high-value claims) — remains the default where the parties have no arbitration agreement and cannot or will not settle. Its principal advantage is that it applies binding legal rules through a public, precedent-generating process with a right of appeal (Circuit Court to High Court; High Court to the Court of Appeal, and in defined circumstances directly to the Supreme Court under Article 34.5.4°), meaning an erroneous first-instance decision is genuinely correctable in a way an arbitral award is not. Courts also have coercive powers — discovery of documents, the ability to compel witnesses, contempt powers to enforce compliance — that neither mediation nor, to the same extent, arbitration possess in the same automatic way.

For business disputes specifically, litigation's disadvantages are precisely mediation's and arbitration's advantages in reverse: proceedings and judgments are public (a serious concern where a business wants to protect commercially sensitive information, trade secrets, or its reputation), the process is comparatively slow (cases can take years to reach trial, particularly in the High Court), costly (formal discovery, pleadings, and trial preparation are labour-intensive), and adversarial in a way that tends to permanently damage an ongoing commercial relationship between the parties, since the process is structured around one side winning and the other losing rather than a compromise both can live with.

6. Cross-cutting comparison for business disputes specifically

Factor	Negotiation	Mediation	Arbitration	Litigation
Binding outcome	No	No (unless settled)	Yes	Yes
Confidentiality	High	High	High	Low (public)
Cost (typical)	Lowest	Low	High	High
Appeal available	n/a	n/a	Very limited	Yes
Relationship-preserving	Yes	Yes	Moderate	Poor
Cross-border enforcement	n/a	n/a	Strong (NY Convention)	Weaker

How to use this table in an exam. Do not simply reproduce a table like this in your answer and stop — in a written essay format (no table permitted in most Section B answers), convert each row into a sentence of comparative analysis, e.g. "Where a business dispute involves commercially sensitive information the parties wish to keep confidential, both mediation and arbitration are preferable to litigation, which is conducted in open court and generates a public judgment." The table above is a revision tool, not a template for your written answer.

The clearest pattern is that *value*, *urgency*, and *relationship* should drive the choice, more than any mechanism being categorically "better." A low-value dispute between businesses with an ongoing supply relationship is generally best served by negotiation or mediation, where the cost of a formal process would exceed what is at stake and the relationship is worth preserving. A high-value, cross-border commercial dispute — particularly where enforcement against assets in another jurisdiction may be needed — is often best served by arbitration, precisely because of New York Convention enforceability and the ability to select arbitrators with relevant commercial expertise. A dispute that turns on a genuinely disputed and commercially important point of law, where the business wants a binding precedent or a right of appeal if the first decision goes against it, is best served by litigation, notwithstanding its cost and publicity.

EXAMINER'S TIP

"Critically compare and contrast" is explicitly asking you to evaluate, not just describe four mechanisms in sequence. Structure your conclusion around a decision framework (as above) rather than simply summarising each paragraph again — that is what turns description into critical comparison for marking purposes.

7. Conclusion

Each dispute resolution mechanism available to Irish businesses solves a different problem. Negotiation and mediation are cheap, confidential, and relationship-preserving, but non-binding and dependent on good faith; arbitration is binding, confidential, and internationally enforceable, but comparatively costly and very difficult to appeal; litigation is binding, appealable, and backed by the coercive power of the courts, but public, slow, expensive, and adversarial in a way that damages ongoing commercial relationships. There is no single "best" mechanism for business disputes in Ireland: the Mediation Act 2017's requirement that solicitors advise clients to consider mediation before litigating reflects a clear legislative and judicial preference for parties to attempt the least adversarial route first, but the correct choice in any given case depends on the value of the dispute, whether confidentiality or precedent matters more, whether the parties need to preserve a commercial relationship, and whether cross-border enforcement of the outcome will be required.

Mark Allocation — Question B3 (out of 100% of the question)

Component	Weight
Introduction — identifies all relevant mechanisms and signals a comparative (not descriptive) framework	10%
Negotiation — advantages and limitations for business disputes specifically	10%
Mediation/conciliation — correctly references the Mediation Act 2017 and explains advantages/limitations for business disputes	20%
Arbitration — correctly references the Arbitration Act 2010/UNCITRAL Model Law and explains advantages/limitations, including enforceability	20%
Litigation — correctly describes the court structure/process and explains advantages/limitations for business disputes	20%
Critical synthesis — a decision framework connecting dispute characteristics (value, urgency, confidentiality, relationship, enforcement) to the appropriate mechanism	15%
Conclusion — a reasoned, specific answer rather than a repeated summary	5%
Total	100%

Mark Bands

Band	What must be present
First Class (70%+)	Accurately explains all four mechanisms, correctly cites the Mediation Act 2017 and Arbitration Act 2010/Model Law, AND builds a genuine critical comparison (not a list) that connects dispute characteristics to the appropriate mechanism, with a specific, reasoned conclusion.
2.1 (60–69%)	Accurately explains at least three of the four mechanisms with correct legislative references AND attempts a comparison, but the trade-offs are not fully connected to "business disputes" specifically or the conclusion is generic.
2.2 (50–59%)	Describes the four mechanisms in sequence with broadly accurate content, but with limited or no genuine "critical" comparison, and/or a missing or inaccurate legislative reference.
Third/Fail (0–49%)	Omits one or more mechanisms entirely, contains significant factual inaccuracy (e.g. describing arbitration as non-binding), or does not engage with "business disputes" as the specific context requested.

Legislative references: Mediation Act 2017 (in force 1 January 2018), ss.3, 14; Arbitration Act 2010, s.9; UNCITRAL Model Law on International Commercial Arbitration (1985, as amended 2006); New York Convention on the Recognition and Enforcement of Foreign Arbitral Awards 1958.